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Case Number: 24NNCV06240 Hearing Date: August 7, 2026 Dept: T

John

Doe vs John Doe

(1)

Motion to Quash Plaintiff's Deposition Subpoena for Written Questions of Nonparties Google and YouTube; (2) Plaintiff John Doe's Motion to Compel Nonparties' Compliance with Plaintiff's Deposition Subpoenas for Written Questions

Moving Party: (1)

Nonparties Google LLC and YouTube LLC; (2) Plaintiff John Doe

Responding Party: (2)

Plaintiff John Doe; (2) Nonparties Google LLC and YouTube LLC

Tentative Ruling: (1)

Grant; (2) Deny

BACKGROUND

On December 3, 2024, Plaintiff John Doe

("Plaintiff") filed a complaint against John Doe and Does 1 to 10 for negligence and defamation. Plaintiff contends that defendants made false statements about Plaintiff that defamed him in his professional capacity.

(Complaint ¶ 9.)

On April 17, 2025, Plaintiff filed a motion for

leave to conduct early discovery prior to an appearance by the doe

defendant.

On May 21, 2025, the Court granted Plaintiff limited leave to serve deposition subpoenas on nonparties Google LLC and YouTube LLC. (Min. Order, 5/21/25.)

On October 27, 2025, Plaintiff filed a second motion for leave to conduct early discovery.

On November 20, 2025, the Court granted Plaintiff limited leave to serve deposition subpoenas on nonparties Google LLC and YouTube LLC. (Min. Order, 11/20/25.)

On December 2, 2025, Plaintiff issued deposition subpoenas to Google LLC and YouTube LLC seeking the “Person Most Qualified” or “Person Most Knowledgeable” to appear for deposition and testify only about account holder identity information. On December 19, 2025, Plaintiff reissued the deposition subpoena to YouTube LLC as subpoena issued on December 2 was missing an attorney’s signature.

On January 27, 2026, Nonparties Google LLC and YouTube LLC (collectively “Google”) filed a motion to quash the subpoenas and for a protective order barring any further discovery requests to Google for the information sought by the subject subpoenas.

On February 10, 2026, Plaintiff filed a motion to compel Google to comply with the subject subpoenas.

On March 27, 2026, the Court granted in part Google’s motion to quash the deposition subpoenas and otherwise denied the request for a protective order, as well as Plaintiff’s motion to compel compliance with his deposition subpoenas. (Min. Order, 3/27/26.)

On April 2, 2026, Plaintiff filed a third motion for leave to conduct early discovery. That same day, Plaintiff also filed a first amended complaint (“FAC”) against the same defendants, alleging causes of action for defamation, false light invasion of privacy, and intentional infliction of emotional distress (“IIED”).

On May 1, 2026, the Court granted Plaintiff limited

leave to serve deposition subpoenas on nonparties Google LLC and YouTube LLC. (Min. Order, 5/1/26.)

On June

8, 2026, Plaintiff issued deposition subpoenas for written questions to each of the Google nonparties.

Google

now moves to quash the deposition subpoenas on the basis that Plaintiff failed to establish a prima facie case of defamation.

Google alternatively asks the Court to limit the method of discovery to document production if it finds that Plaintiff has established a prima facie case.

Plaintiff

separately moves to compel Google's compliance with the deposition subpoenas.

Google opposes the motion to compel and replies to Plaintiff's opposition to their motion.

Plaintiff opposes the motion to quash and for protective order and replies to Google's opposition to his motion.

However, as the Court has granted Google's motion to quash for the reasons addressed below, the Court shall not substantively address Plaintiff's motion to compel compliance.

MOVING

PARTY POSITION

Google argues that, as the subject subpoenas seek to unmask anonymous online speaker, Plaintiff fails to establish a prima facie case of defamation because Plaintiff has not identified the exact statement upon which liability is predicated or explained how the underlying video in which the statements were made is actionable.

Google further argues that the video constitutes protected opinion as most of the statements contained therein are not provably false, and even if any of the statements contain an assertion, such statements are not actionable because the underlying facts have been disclosed.

In addition, Plaintiff's defamation claim is barred by the fair report privilege because the statements directly quote and refer to communications in

judicial proceedings that were sent to the media via the caption "mentions" to various local media organizations that were included in the video. Google also argues that Plaintiff has not shown that any of the defamatory statements were made with actual malice, which was required given Plaintiff's status as a limited public figure, and that Plaintiff failed to provide prima facie evidence of harm caused by these defamatory statements.

Google finally argues that, even if the Court finds that Plaintiff established a prima facie case of defamation, the Court should limit the discovery method to the production of business records, as Plaintiff has already agreed to this alternative relief should the Court deny the motion.

OPPOSITION

Plaintiff contends that he has made a prima facie showing of defamation based on the new allegations set forth in the FAC and the evidence provided by his supporting declaration. Plaintiff also contends that the fair report privileges does not apply to the underlying statements that he claims were defamatory and that Google failed to carry its burden of establishing that the privilege bars his defamation claim.

REPLY

Google reiterates that Plaintiff failed to make a prima facie claim of defamation under the applicable legal standards set forth in *Krinsky v. Doe 6* (2008) 159 Cal. App. 4th 1154 and that Plaintiff has not produced sufficient evidence of falsity or evidence of actual malice. Google also responds that Plaintiff's opposition does not rebut the fair report privilege and that Plaintiff failed to plead and prove special damages.

ANALYSIS

I. Legal Standard

Code of Civil Procedure section 1987.1 provides as follows:

If

a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc. § 1987.1, subd.

(a).) A motion to quash under this

section may be filed by any of several categories of interested persons,

including a nonparty witness. (See Code

Civ. Proc. § 1987.1, subd. (b).)

California Code of Civil Procedure section 1987.2 provides

that “the court may in its discretion award the amount of reasonable expenses incurred in making or opposing [a motion to quash], including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc. section 1987.2(a).)

II. Evidentiary

Objections

The Court rules on Plaintiff's Objection number 1 to Paragraph 4 of the Garza Declaration as follows: Overruled.

The Court declines to rule on the parties' remaining evidentiary objections as they have no effect on the ruling herein.

III. Discussion

At

the outset, the Court reiterates that nonparties Google, as website hosts, have

standing to assert the First Amendment rights of persons who post reviews anonymously on their site. (See, e.g., *Yelp Inc. v. Superior Court* (2017) 17 Cal.App.5th 1, 13 [holding that “a website host such as Yelp has standing to assert the First Amendment rights of persons who post reviews anonymously on its site, as against an effort to compel Yelp to identify those persons.” “Judicial recognition of the constitutional right to publish anonymously is a longstanding tradition.” (*Krinsky v. Doe 6* (2008) 159 Cal.App.4th 1154, 1163.) “When vigorous criticism descends into defamation, however, constitutional protection is no longer available.” (*Id.*, at p. 1164.)

As a result, before a website host can be compelled to produce identifying information about a person who allegedly defamed a plaintiff on the site, the plaintiff must first make a requisite showing. (See *Yelp, supra*, 17 Cal.App.5th at p. 13 [discussing *ZL Technologies, Inc. v. Does 1-7* (2017) 13 Cal.App.5th 603].) To make such a prima facie showing, a plaintiff must identify “the exact statements on which liability is predicated,” and “if it is not obvious from the face of the statements that they indeed conveyed an actionable meaning, the plaintiff must clearly specify the meaning [the plaintiff] contends was conveyed by them, and any extrinsic facts necessary to lend them that meaning.” (*Glassdoor, Inc. v. Superior Court* (2017) 9 Cal.App.5th 623, 636.) Then, the plaintiff needs to “produce evidence of only those material facts that are accessible to [him],” for example, that the statement was made, “evidence of its falsity,” and its effect on the plaintiff. (*Krinsky, supra*, 159 Cal.App.4th at p. 1171.) The evidence, which may be “slight,” must “support a ruling in favor of [the plaintiff] if no controverting evidence is presented.” (*Glassdoor, supra*, 9 Cal.App.5th at p. 634.) In sum, “a plaintiff seeking compulsory disclosure of an allegedly libelous speaker’s identity must state a legally sufficient cause of action against the defendant, and must make a prima facie showing of the elements of that cause of action.” (*ZL Technologies, supra*, 13 Cal.App.5th at p. 614.)

A claim for defamation requires the Plaintiff to demonstrate the “intentional publication of a statement of fact that is false, unprivileged, and has a natural tendency to injure or which causes special damage.” (*Smith v. Maldonado* (1999) 72 Cal.App.4th 637, 645.) Defamation

requires “the existence of falsehood.” (ZL Technologies, *supra*, 13 Cal.App.5th at p. 624.) “[S]tatements of opinion are constitutionally protected,” but “where an expression of opinion implies a false assertion of fact, the opinion can constitute actionable defamation.” (Ibid.) Certain types of language such as hyperbolic, informal, crude, ungrammatical, satirical, vituperative, juvenile, or name-calling language support the conclusion that offensive comments are nonactionable opinion. (Ibid.) Overly vague statements and generalized comments lacking specificity as to time and place “may be a further signal to the reader there is no factual basis for the accusations.” (Ibid.) The context of the statements, such as where they are made and the targeted audience, are also factors. (Id., at pp. 624-625.)

Applying this framework, the Court finds that Plaintiff still fails to make a *prima facie* showing as Plaintiff failed to state a legally sufficient cause of action for defamation against the anonymous speaker and failed to make a *prima facie* showing of the elements of his defamation claim. “As explained by the Court of Appeal in ZL Technologies, “Krinsky also adopted the second factor of [Dendrite International Inc. v. John Doe No. 3 (2001) 342 N.J.Super. 134]’s *prima facie* showing requirement, namely, the existence of a legally valid claim,” which under Dendrite required a plaintiff to establish that the defamation claim could survive a motion to dismiss, a motion of which the equivalent under California law is a demurrer. (ZL Technologies, *supra*, 13 Cal.App.5th at p. 612, fn. 4.) Although Plaintiff set forth numerous statements in the FAC that he alleges are actionable, false, and defamatory, in reviewing the allegations and submitted evidence, the Court finds that these statements are not provably false, as the statements are either directly quoted from public records or proceedings, or appear to be based upon disclosed facts from these public records and proceedings. (FAC ¶¶ 12–13.) As to the latter category of statements based on disclosed facts, in examining the totality of the circumstances, the Court finds that these statements are not actionable as the anonymous speaker’s quotation and reliance on publicly available records makes it clear that the opinion statements represents his own interpretation of those facts rather than implying the existence of unstated defamatory facts. (See, e.g., Franklin v. Dynamic Details, Inc. (2004) 116 Cal.App.4th 375, 386–387.)

Furthermore, although Plaintiff attempts to satisfy his *prima facie* evidentiary showing under Krinsky by submitting a declaration that identifies various statements that were made in the underlying video, Plaintiff’s declaration that he “never committed any of

the acts described” or “engaged in the conduct” attributed to him by the anonymous online speaker is not sufficient to make a prima facie showing of falsity, even under the “slight” standard required, particularly as the video makes evidence that the facts upon which the opinion statements are based have been disclosed through publicly available records.

(Doe Decl., at pp.1–4; see Garza Decl. ¶ 4, Exh. D.)

Therefore,

given the Court’s findings that Plaintiff failed to satisfy both requirements under Krinsky for compulsory disclosure of the anonymous online speaker’s identity, the motion to quash is granted as to the deposition subpoenas for written questions.

Moreover,

as the Court granted the motion to quash the deposition subpoenas, the motion to compel compliance with these subpoenas is denied as moot.

RULING

(1) Nonparties Google LLC and YouTube LLC’s Motion to Quash Plaintiff John Doe’s Deposition Subpoenas for Written Questions is GRANTED.

(2) Plaintiff John Doe’s Motion to Compel Nonparties’ Compliance with Plaintiff’s Deposition Subpoenas for Written Questions is DENIED as moot.